

		Defendant argues that the complicated procedural history of this litigation makes preparation of the appendix difficult and time-consuming. However, Plaintiff's Counsel has provided evidence that he will be able to undertake preparing such a complicated appendix. (See <i>id.</i>, ¶¶ 2-6.) Plaintiff has the right to elect whether to use a clerk's transcript or an appendix. No good cause has been shown to deprive Plaintiff of this right. The court will deny the motion. Plaintiff shall give notice of this ruling.
6	Hodgson vs. Haase 30-2024-01393270	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Strike</u> Defendant Kenneth Craig Haase's Motion to Strike Portions of Plaintiff's Original Complaint is DENIED. Defendant Kenneth Craig Haase seeks to strike "improper, irrelevant, and legally defective allegations and requests for relief contained in Plaintiff's Original Complaint." (Mot. to Strike Portions of Pltf.'s Original Compl. at p. 2:3-4). "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322.) Here, Defendant notice of motion to strike fails to identify the paragraphs and/or causes of action of the Complaint that he wishes to strike. Without this information, Plaintiff cannot adequately respond to the motion to strike and the court cannot determine whether and which portions of the Complaint are "improper, irrelevant, and/or legally defective." The court will deny the motion to strike.

		<u>Motion for Joinder of Party</u> Defendant Kenneth Craig Haase’s Motion to Compel Joinder of Necessary and Indispensable Parties is DENIED. Defendant Kenneth Craig Haase moves to join Compass Real Estate and Stephanie Cismoski as defendants in this action. The Civil Procedure Code provides that more than one person may be joined as plaintiffs in an action if: (1) They assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or (2) They have a claim, right, or interest adverse to the defendant in the property or controversy which is the subject of the action. (Code Civ. Proc., § 378, subd. (a).) Similarly, more than one person may be joined as defendants in an action if: (1) Any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or (2) A claim, right, or interest adverse to them in the property or controversy which is the subject of the action. (Code Civ. Proc., § 379, subd. (a).) “Sections 378 and 379 address the permissive joinder of plaintiffs and defendants, respectively.” (<i>Countrywide Home Loans, Inc. v. Superior Court</i> (1999) 69 Cal.App.4th 785, 797.)
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		In addition to permissive joinder, the Civil Procedure Code also provides for mandatory joinder of necessary or indispensable parties: (a) A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party. (Code Civ. Proc., § 389, subd. (a).) Nonjoinder of a party must be raised by demurrer or answer at the outset of the action, or the objection is waived. (See Code Civ. Proc., § 430.80.) As long as the objection has been raised as a defense in the answer, defendant may move the court any time prior to trial for an order compelling the joinder of the absent party. (See Code Civ. Proc., 389(a).) Here, Defendant did not raise the issue of joinder of parties on demurrer and Defendant's Answer does not raise this issue as an affirmative defense, and has waived the objection. (See ROA #54.) Further, Defendant has delayed in bringing up this motion until the eve of trial and has not provided an explanation for his delay. In any case, the Complaint alleges a cause of action for breach of contract and common counts. Plaintiff alleges that she prepaid Defendant \$65,000 for one year of rent, but that Defendant failed to deliver the possession of the premises or refund Plaintiff's money. Plaintiff seeks relief against Defendant Haase only.
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		Defendant fails to show good cause of joinder under Section 379. Defendant also fails to show that complete relief cannot be afforded to Plaintiff without Compass Real Estate and Stephanie Cismoski, or that any of the conditions laid out Section 389 exist here. The court will deny the motion for joinder of parties. <u>Motion for Jury Trial</u> Defendant Kenneth Craig Haase's Motion for Jury Trial is GRANTED. Defendant Kenneth Craig Haase is ORDERED to comply fully and strictly with Orange County Superior Court Local Rule 317 prior to the Jury Trial. Defendant Kenneth Craig Haase is ORDERED to post jury fees for 50 jurors for 3 days of jury voir dire and for 15 jurors for 7 days of trial within 30 days of this ruling. If Defendant Kenneth Craig Haase fails to abide by the court's orders above, that shall be taken as a waiver of the right to a jury trial. Defendant Kenneth Craig Haase moves for a jury trial of this action. The right to a jury trial is guaranteed by California's Constitution. (Cal. Const. Art. I, 16.) However, a party may waive that right, however, by failing to assert a demand for a jury trial and/or by failing to timely pay jury fees. (See Code Civ. Proc., § 631, subd.s (a)-(b).) Nevertheless, even if a statutory waiver has occurred under section 631(a), "the court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury." (Code Civ. Proc., § 631, subd. (g).) "In exercising such discretion, courts are mindful of the requirement 'to resolve doubts in interpreting the waiver provisions of section 631 in favor of a litigant's right to jury trial.'" (<i>Tesoro del Valle Master Homeowners Ass'n v. Griffin</i> (2011) 200 Cal.App.4th 619, 638.)
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		"A trial court abuses its discretion as a matter of law when '. . . relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver.'" (<i>Ibid.</i>) Here, the trial in this case has been continued to July 13, 2026. Thus, the parties still have sufficient time to prepare for a jury trial instead of a bench trial. Any prejudice to Plaintiff of preparing for a jury trial is outweighed by the prejudice to Defendant of losing the right to a jury trial. At the same time, Plaintiff has offered evidence that Defendant has refused to engage in an issues conference until six days before trial and has refused to cooperate in preparing and filing the documents necessary for a jury trial, including a joint statement of the case, proposed jury instructions, joint exhibit list, or proposed verdict forms. (See Decl. of Joseph A. Ferrucci re Defendant's Failure/Refusal to Comply with Local Rule 317, ¶¶ 5-9.) Therefore, the court will order that Defendant comply fully with Local Rule 317 and post jury fees for the trial, or risk waiving the right to a jury trial. The court will grant the motion for a jury trial upon the conditions stated. <u>Motion for Leave to Amend</u> Defendant Kenneth Craig Haase's Motion for Leave to File Amended Answer is DENIED. The Answer of Kenneth Craig Haase to Plaintiff's First Amended Complaint (ROA #235) is ORDERED STRICKEN. Defendant Kenneth Craig Haase moves for leave to file an amended answer. Defendant contends that an amended answer is necessary because Plaintiff filed a first amended complaint "that expanded and reframed allegations against me." (Decl. of Kenneth Craig Haase, ¶ 2.)
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		However, the court has yet to grant Plaintiff leave to file a first amended complaint. Rather, the court continued the hearing on Plaintiff's motion for leave to amend to file a First Amended Complaint to July 27, 2026. (See ROA #246.) Therefore, there is no need for Plaintiff to file an amended answer at this time. If Plaintiff is granted leave to file a first amended complaint, Defendant will have the right at that time to file an answer to the new operative pleading. Further, pursuant California Rules of Court rule 3.1324, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) The motion for leave to amend is procedurally defective in that it does not include a copy of the proposed amended answer and does not state what allegations are proposed to be deleted or added to the original Answer. The court notes that Defendant filed an unauthorized answer (ROA # 235) to Plaintiff's first amended complaint (which has not been filed). The court, on its own motion, strikes the unauthorized answer. The court will deny the motion to amend. Plaintiff shall give notice of these rulings.
7	Sahel Oncology LLC vs. Blank Rome LLP 30-2025-01518179	<u>Motion to Compel Arbitration</u> There is no full written tentative ruling at this time. The court will hear from the parties or their counsel, who should be ready to address the issue